

STATE OF NEW YORK

7217--A

2025-2026 Regular Sessions

IN SENATE

April 4, 2025

Introduced by Sen. MARTINEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- recommended to the Committee on Local Government in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general municipal law, in relation to building permits; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 125 of the general municipal law, as added by chapter 439 of the laws of 1998, is amended to read as follows:

§ 125. Issuance of building permits. 1. No city, town or village shall issue a building permit without obtaining from the permit applicant either:

~~[1-]~~ (a) proof duly subscribed that workers' compensation insurance and disability benefits coverage issued by an insurance carrier in a form satisfactory to the chair of the workers' compensation board as provided for in section fifty-seven of the workers' compensation law is effective; or

~~[2-]~~ (b) an affidavit that such permit applicant has not engaged an employer or any employees as those terms are defined in section two of the workers' compensation law to perform work relating to such building permit.

2. (a) Notwithstanding any law, rule or regulation to the contrary a city, town or village in a county with a population of one million two hundred thousand or more, not wholly contained within a city, or in a city with a population of between two hundred nine thousand and two hundred ten thousand and in a county with a population of between nine hundred ninety thousand and one million, may establish a program whereby a building permit may be issued based upon a certification by a regis-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 tered architect licensed to practice in the state of New York or a
2 professional engineer licensed to practice in the state of New York that
3 the intended work as set forth in the building permit application meets
4 the requirements of the Uniform Fire Prevention and Building Code,
5 excluding the approval of fire service features and compliance with fire
6 protection and life safety systems as defined by the fire code of New
7 York state, or any more restrictive local provisions relating to fire
8 services, fire protection or life safety systems. Such program shall
9 include the following requirements:

10 (i) no later than forty-five days after submission of a building
11 permit application with a certification as provided for herein to the
12 municipal building department such application shall be deemed approved
13 unless denied;

14 (ii) in the event of a denial of a building permit application with a
15 certification the building department shall set forth the reasons for
16 such denial and shall cite the applicable provisions of the law or regu-
17 lation upon which such denial is predicated; and

18 (iii) a random audit of applications for a building permit to ensure
19 compliance. Provided, however, a city, town, or village establishing a
20 program pursuant to this section shall be prohibited from reducing or
21 eliminating the position of any employee involved with the building
22 permit application process during the effectiveness of this section.
23 Any program established by a city, town or village pursuant to this
24 paragraph shall be referred to as a "professional certification
25 program".

26 (b) The wrongful or negligent certification by a licensed professional
27 pursuant to this section may constitute professional misconduct, and
28 referral can be made to the state education department office of
29 professions upon a finding of wrongdoing or negligence by the licensed
30 professional by the building department with jurisdiction over the
31 project.

32 § 2. This act shall take effect immediately and shall expire and be
33 deemed repealed three years after such effective date.